Topic 20 — Internal Security

Covers syllabus (click to expand)

Internal Security Institutions | NIA (राष्ट्रीय अन्वेषण एजेंसी) | NSG (एनएसजी) | IB | RAW (रॉ) | CAPFs (CRPF (सीआरपीएफ), BSF (सीमा सुरक्षा बल), CISF (सीआईएसएफ), ITBP, SSB (एसएसबी)) | Assam Rifles (असम राइफल्स) | National Security Council | Cyber Security Institutions | UAPA (यूएपीए) (basic) | AFSPA (अफस्पा) (basic)

Sources baked in: MHA force identity, NIA Act 2008, IT Act s.70A/70B, UAPA 1967/2019, AFSPA 1958/1990, UPPCS PYQs 2018–2025 **Weight:** ★★★ — BHARATPOL = **CBI** (2025); Kanker **not** Gadchiroli (2024); CERT-In = **MeitY / s.70B** ≠ I4C (**MHA**); UAPA **2019** can tag **individuals**; AFSPA only in a notified **disturbed area**; 66A **struck 2015** (T19) **Last verified:** August 2026 **Current Affairs:** CERT-In **2022** 6-hour reporting; UAPA 2019 individuals; AFSPA rolled back in Tripura **2015**, Meghalaya, large parts of Assam **2022** — still on in parts of NL/MN/AR + **J&K 1990 Act**; Defence Cyber Agency **2019**

Current Affairs (what the year actually tests)

Newest first. One event, one fact — not a dump of keywords.

Year	What happened	What you mark
2025	**BHARATPOL** portal launched for Interpol police cooperation	Built by **CBI** (केन्द्रीय अन्वेषण ब्यूरो), because CBI is India's Interpol **National Central Bureau**. Not IB, not RAW, not ED
2024	April anti-Maoist encounter	**Kanker district, Chhattisgarh** (Abujhmad / Binagunda) — **not Gadchiroli (Maharashtra)**. Forces: **BSF + District Reserve Guard**. DRG is a **Chhattisgarh** police unit; Maharashtra's LWE unit is **C-60**
2022	CERT-In (सर्ट-इन) issued directions on incident reporting	Report specified incidents in **6 hours**; keep logs **5 years**. CERT-In = **MeitY / s.70B**, not MHA
2022	AFSPA withdrawn from large parts of **Assam**	AFSPA is a **notification**, not a permanent all-India law. Assam ≠ still fully covered
2020	I4C (भारतीय साइबर अपराध समन्वय केंद्र) opened out for States	**MHA** cyber-*crime* coordination + **cybercrime.gov.in**. Different from CERT-In
2019	**UAPA** amendment	Centre can list **individuals** as terrorists (Fourth Schedule), not only organisations
2019	**NIA** amendment	Wider schedule (trafficking, cyber-terror, counterfeit, arms…) + **extra-territorial** investigation

Year	What happened	What you mark
2019	**SPG Act** amendment	SPG as of right = **sitting (बैठक) PM** + family. Ex-PM cover **5 years** from leaving office — **not** lifelong for every former PM
2019	**Defence Cyber Agency** raised	**Tri-service, MoD**. Not I4C, not CERT-In
2018	NSC (राष्ट्रीय सुरक्षा परिषद)'s Strategic Policy Group recast	**NSA** (not Cabinet Secretary) **chairs** the Strategic Policy Group. This SPG ≠ Special Protection Group 1988
2017	MHA's **SAMADHAN** for LWE	Strategy acrostic (Smart leadership … No financing) — not a new CAPF (सीएपीएफ)
2015	*Shreya Singhal*	IT Act **s.66A struck**; **s.69A** blocking **upheld**
2015	Tripura lifted AFSPA	First NE State in that wave to go off the 1958 map (**May 2015**)
2013	National Cyber Security Policy	**MeitY**. 2023 draft is **not** the replacement to freeze
2008	26/11 year	**NIA Act** · CRPF **CoBRA** · UAPA given more teeth
2004	POTA repealed	Terror chapters **enter UAPA**. CERT-In also born this year (executive)
2001	After Parliament attack	**MAC** (बहु-एजेंसी केंद्र) fused inside **IB**. Special Service Bureau renamed **Sashastra Seema Bal** (Nepal + Bhutan)

Frame

Who holds the gun, under which ministry, for which border / offence. Police is a **State** subject; the Union still walks in under **Art. 355**, CAPF deployment, and scheduled-offence statutes. IB 1887 MHA; RAW 1968 Cabinet Secretariat; NIA Act 2008; NSC 1998 PM chairs. Interpol NCB = **CBI**. IT Act s.66A struck 2015; **66F / 70A / 70B** are the security-use sections. NSA 1980 = preventive detention (Art. 22).

Internal Security — map

Who holds the gun, under which ministry, for which border / offence. Police is State List; the Union walks in under Art. **355**, CAPF deployment, and scheduled-offence statutes.

- Terrorism / 26/11-type → State police → **NSG** · probe **NIA** · intel IB/MAC
- LWE / Naxal → State police + **CRPF / CoBRA** + (Bastar) **DRG**; BSF also in some theatres
- NE insurgency → **Assam Rifles** + State police + Army as notified
- Borders W/E → **BSF** (Pak, Bangladesh)
- Border N → **ITBP** (China / LAC)
- Open borders → **SSB** (Nepal, Bhutan)
- Industry / airport / metro → **CISF**

- Coastal → Marine police → **Coast Guard** → **Navy**
- Cyber → **CERT-In** (incident, MeitY) · **I4C** (crime, MHA) · **NCIIPC** (CII, NTRO)
- Disaster → **NDRF** (DM Act 2005) — not a CAPF

Constitutional facts

- Public order / police = State List **Entries 1–2**. Union armed forces = Union List (संघ सूची)
- **Entry 2A** (Union, 42nd (42वां)) — deployment of armed forces **in aid of civil power**
- **Art. 355** — Union **shall** protect every State against external aggression **and internal disturbance**
- Nodal: **MHA** for internal; **MoD** for Army/Navy/IAF/Coast Guard
- **SAMADHAN** (MHA **2017**) — LWE strategy. Expand if the paper prints letters: **S**mart leadership · **A**ggressive strategy · **M**otivation & training · **A**ctionable intelligence · **D**ashboard KPIs · **H**arnessing technology · **A**ction plan per theatre · **N**o access to financing

> **Logic:** Police is **State** List. Union uses 355 + CAPF + Entry 2A — not a Union-List police.

PYQ — UPPCS Prelims 2024, Q80

With reference to the Anti-Maoist operation that took place in April 2024, which of the following statements is/are correct?

1. It took place in Gadchiroli district of Maharashtra.
2. The operation was launched by BSF and District Reserve Guards.

A. Only 2 B. Neither 1 nor 2 C. Only 1 D. Both 1 and 2

Show answer

Ans: A — Only 2. Theatre = **Kanker, Chhattisgarh** (Binagunda / Abujhmad), **not** Gadchiroli. Forces = **BSF + DRG**. DRG is a **Chhattisgarh** police unit, not Maharashtra's C-60.

NIA (National Investigation Agency)

Statutory central investigating and prosecuting agency under the NIA Act, 2008 — scheduled offences anywhere in India, **no State consent**.

- Born after **26/11 Mumbai**. **Statutory** (CBI/IB/RAW are not)
- Job: investigate **and prosecute** offences listed in the Act's **Schedule**
- Original schedule flavour: **UAPA** · Explosive Substances · Atomic Energy · Anti-hijacking · SAARC terror convention · WMD / SUA-type as listed
- **No State consent** to take up a scheduled offence **anywhere in India** — the CBI contrast (DSPE **s.6**)
- **Special NIA Courts** (Sessions-level, notified by the Centre in consultation with the CJ of the HC)
- **2019 Amd — schedule:** adds (as listed) **human trafficking**, **cyber-terrorism** (IT Act), **counterfeit currency**, **Arms Act**, explosive leftovers — don't write "NIA now tries every IPC theft"
- **2019 Amd — extra-territorial:** can investigate a scheduled offence **outside India** targeting Indians / Indian property, with the foreign government's cooperation; can probe / attach **proceeds** as the

Act provides

- Head / HQ: Director General · **New Delhi** · **MHA**
- ≠ CBI (needs s.6) · IB (intel, **no** charge-sheet) · ED (PMLA/FEMA, **Finance**)

> **Logic:** NIA does **not** need State consent; CBI does (DSPE **s.6**).

NSG (National Security Guard)

Federal contingency strike force under MHA — counter-terror, counter-hijack, hostage rescue. Nickname **Black Cats**.

- Born **1984** (post Operation Blue Star). **NSG Act 1986**
- Two arms: **SAG** (Special Action Group) — drawn from the **Army** · **SRG** (Special Ranger Group) — drawn from **CAPFs**
- Ministry **MHA** (not MoD). HQ **Manesar** (Gurugram). Regional hubs after **26/11** (Mumbai, Chennai, Hyderabad (हैदराबाद), Kolkata…)
- Ops raata: Black Thunder (Golden Temple (स्वर्ण मंदिर) 1988) · Black Tornado (**26/11 Mumbai**)
- ≠ SPG (PM's close protection) · Army SF (MoD) · CoBRA (CRPF LWE)

> **Logic:** NSG = strike. SPG **1988** = PM's close protection. CoBRA = **CRPF** LWE, not NSG.

IB (Intelligence Bureau)

India's internal intelligence agency under MHA — oldest intel outfit (**1887**, Central Special Branch).

- Beat: **internal** intel, counter-intel, VIP-security inputs. Director IB (usually IPS)
- Executive, **not** statutory, **not** a police charge-sheet agency
- **MAC** (Multi-Agency Centre, **2001**, after Parliament attack) sits with IB; SMAC in States
- ≠ RAW (external, Cabinet Secretariat) · NIA (charge-sheet agency)

RAW (Research and Analysis Wing)

India's external intelligence agency — Cabinet Secretariat / NSA / PM, **not** MHA.

- Born **21 Sep 1968** (founder **R.N. Kao**)
- Split from IB after 1962/65 showed the external gap
- Same character as IB: executive, **not** statutory, **not** a police charge-sheet agency

	IB	RAW
Year	**1887** (Central Special Branch) — **oldest**	**21 Sep 1968** (founder **R.N. Kao**)
Beat	**Internal** intel, counter-intel, VIP-security inputs	**External** intel

	IB	RAW
Line	**MHA** · Director IB (usually IPS)	**Cabinet Secretariat / NSA / PM — not** MHA
Character	Executive, **not** statutory, **not** a police charge-sheet agency	Same
Grid	**MAC** sits with IB; SMAC in States	Split from IB after 1962/65

> **Logic:** IB = internal **MHA 1887**. RAW = external **Cabinet Secretariat 1968**. Opposite is the paper trap.

MAC · NATGRID · NCTC · BHARATPOL

- **MAC** — Multi-Agency Centre, **2001** (after the Parliament attack). Terror intel **fusion** desk **inside IB**. States have **SMAC**. Not a police force, not NIA
- **NATGRID** — post-**26/11** electronic backbone, **MHA**. Pulls specified data from listed providers (tax, bank, travel, visa-type) for authorised user agencies. **Not** a CAPF, **not** Interpol
- **NCTC** — National **Counter Terrorism** Centre — proposed ~2012 under IB. States said it violated federal police power. **Never established**
- **BHARATPOL** — **2025** online portal for **Interpol** police cooperation. Built by **CBI**, because CBI is India's **National Central Bureau** of Interpol. Options will dangle IB/RAW/ED — mark **CBI only**

> **Logic:** BHARATPOL = **CBI only**. NCTC (terror) (आतंकवाद-रोधी केंद्र) **never born**. I4C's training centre is a different "NCTC".

PYQ — UPPCS Prelims 2025, Q126

BHARATPOL developed by— 1 CBI 2 RAW 3 IB 4 ED A. 2 and 3 B. 3 and 4 C. Only 3 D. Only 1

Show answer

Ans: D — Only 1 (CBI).

NSC (National Security Council)

Extra-constitutional security apex chaired by the PM — advises; does **not** take Cabinet decisions (that is **CCS**). Born **1998** (Vajpayee). No article, no Act.

- Members (typical): HM · Defence · External Affairs · Finance + **NSA**. Others as invited
- First NSA: **Brajesh Mishra** (1998). NSA is an **executive** adviser, not a constitutional post
- Three-tier: **(1) NSC** — political apex. **(2) Strategic Policy Group (SPG)** — secretaries + chiefs; after **2018 the NSA chairs SPG** (earlier Cabinet Secretary). **(3) NSAB** — National Security Advisory Board, outside experts

- Secretariat: **NSCS** (National Security Council Secretariat). Joint Intelligence Committee feeds assessments
- ≠ **CCS** — Cabinet Committee on **Security** = a **Cabinet** committee (PM, HM, Defence, Finance, EAM) that **takes Cabinet decisions** on war/nuclear/major ops. NSC **advises**
- Name collision: NSC's **SPG** = Strategic **Policy** Group. The **SPG Act 1988** = Special **Protection** Group (PM's guards)

> **Logic:** Don't mix **SPG** (PM protection, 1988 Act) with **NSG** (counter-terror, 1984) or with NSC's Strategic **Policy** Group.

SPG — Special Protection Group (the other SPG)

Close-protection force for the Prime Minister under the **SPG Act, 1988**. Cabinet Secretariat — **not** a CAPF, **not** NSG.

- Force **1985** after Indira Gandhi (गांधी) assassination; Act **1988**
- Before 2019: sitting PM + family **and** all former PMs + families, as the old Act read
- **2019 Amd:only** the **sitting PM** and immediate family as of right. A **former PM** (and family) get cover for **5 years** from the date of demitting office — then SPG ends unless the person is still a high-risk protectee under other arrangements
- Paper trap: "every ex-PM has SPG for life"
- ≠ NSC's Strategic Policy Group · ≠ NSG Black Cats

> **Logic:** After 2019, ex-PM SPG cover = **5 years**, not life.

CAPFs

Central Armed Police Forces. Peace-time **MHA**. Not "Army". Not Coast Guard. Each force: **Director General**. Cadre = CAPF officers + IPS at the top; not "all Army". Deploy on State request / Union direction — still **not** a substitute for State police.

Raising-day / HQ trap: all five HQs **New Delhi**. Don't give ITBP "Itanagar" or BSF "Jaisalmer" as *HQ*.

CRPF

Central Armed Police Force under MHA — internal security / law and order assist. **Largest CAPF.**

- Raised **27 Jul 1939** (Crown Representative's Police) → CRPF Act **1949**. Raising Day **27 July**
- Motto: Service and Loyalty
- Core beat: internal security, LWE, elections, UN peacekeeping — **not** an international land-border force
- **RAF 1992** = Rapid Action Force (communal / riot, more tear-smoke than rifle)

- **CoBRA 2008** = Commando Battalion for Resolute Action (**jungle LWE**, not NSG Black Cats)
- First mahila battalion **1986**

> **Logic:** CRPF raised **1939** / Act **1949**. **1965 = BSF**. CoBRA = CRPF, not NSG.

BSF

Central Armed Police Force under MHA — India's international **land** border (west + east).

- Raised **1 Dec 1965** (after 1965 war). First DG **K.F. Rustamji**
- Motto: Duty Unto Death
- Border: **Pakistan + Bangladesh** — **not** China / LAC (that is **ITBP**)
- Water + air wings. War-time operates with Army

> **Logic:** BSF does **not** guard the China border. BSF = Pak + Bangladesh.

CISF

Central Armed Police Force under MHA — static / industrial / infrastructure security.

- Raised **10 Mar 1969** (Act **1968**)
- Airports, PSUs, metro, SEZ, Delhi Metro; private establishments **on payment**
- Only CAPF built as **infrastructure security** — **not** riot police, **not** a border force

> **Logic:** CISF = industrial / airport / metro. CRPF = mobile internal-security grid.

ITBP

Central Armed Police Force under MHA — high-altitude India–China / **LAC** border.

- Raised **24 Oct 1962** (after China war). Act **1992**
- Motto: Shaurya–Dridhata–Karm Nishtha
- Himalayan disaster response. HQ **New Delhi**, not Itanagar / Leh (लेह)

> **Logic:** ITBP = China / LAC. BSF = Pak + Bangladesh.

SSB

Central Armed Police Force under MHA — open-border force on **Nepal + Bhutan**.

- Born **1963** as Special Service Bureau → renamed **Sashastra Seema Bal 2001**
- Motto: Service, Security and Brotherhood

- Civic-action origin. **Not** “Nepal only” — Bhutan too. **Not** the NE rifle (that is Assam Rifles)

> **Logic:** SSB renamed **2001**. Nepal **and Bhutan**.

Assam Rifles

Oldest of the central paramilitary family — North-East counter-insurgency. Dual control: **admin MHA, operations Army**.

- Born **1835** (Cachar Levy)
- Beat: **North-East** as tasked; “Sentinels of the North-East” / “Friends of the Hill People”
- DG is a **Lt General** from the Army
- HQ **Shillong** (not New Delhi) — the CAPF HQ trap does **not** apply here
- ≠ a CAPF like CRPF (no dual Army ops) · SSB (Nepal/Bhutan, not “the” NE rifle)

> **Logic:** Assam Rifles is **not** an ordinary CAPF under only MHA. Dual MHA + Army; HQ **Shillong**.

Neighbours that arenotCAPFs

Indian Coast Guard

Armed force under MoD — sea, not a CAPF, not MHA. - **18 Aug 1978** · Coast Guard Act **1978** · Motto *Vayam Rakshamah* (“We Protect”)

NDRF

Disaster-response force under the DM Act, 2005 (MHA) — not riot control, not a CAPF.

RPF / RPSF

Railway Protection Force under **Railways** — railway property / passengers.

Army / Navy / IAF

Armed forces under MoD — external defence; aid to civil power when requisitioned.

State police / DRG / C-60

First responders.DRG = Chhattisgarh (Bastar). **C-60 = Maharashtra** (Gadchiroli). 2024 paper mixed the two.

> **Logic:** Coast Guard = **MoD, 1978**, not CAPF/MHA. April 2024 Maoist op = **Kanker, Chhattisgarh**, not Gadchiroli; DRG ≠ Maharashtra.

Coastal security after 26/11 — three layers

Layer	Who	Water
Shore / territorial	**Coastal police** (State), Coastal Security Scheme (**MHA**)	Roughly **12 nautical miles**
EEZ patrol	**Indian Coast Guard (MoD)**	Out toward **200 nm** EEZ
Blue water (ब्लू वॉटर) / war	**Navy (MoD)**	Beyond / joint ops

Sagar Kavach-type exercises join the three. Fishermen biometric ID / transponders are the *awareness* layer — not a fourth force.

Cyber Security Institutions

Papers mix **MeitY** (incident / IT Act) with **MHA** (crime). Keep the ministries. IT Act **2000**; **s.66A** struck 2015; **66F / 69 / 70A / 70B** are the security-use sections.

- **MeitY:** CERT-In · CCA · Cyber Swachhta Kendra · NCSP 2013 · DPDP 2023
- **MHA:** I4C · National Cybercrime Reporting Portal · UAPA schedule · NIA · AFSPA notification
- **NCIIPC** → **NTRO** (NSA / Cabinet Secretariat line)
- **Defence Cyber Agency** → **MoD** (tri-service, **2019**)
- **National Cyber Security Coordinator** → **NSCS** (NSA secretariat)

Expansions (write the full form if the paper asks): CERT-In = Indian Computer Emergency Response Team · NCIIPC = National Critical Information Infrastructure Protection Centre · I4C = Indian Cyber Crime Coordination Centre · NTRO = National Technical Research Organisation · NCSC (राष्ट्रीय अनुसूचित जाति आयोग) = National Cyber Security Coordinator · CCA = Controller of Certifying Authorities (IT Act, digital signatures) · UAPA = Unlawful Activities (Prevention) Act · AFSPA = Armed Forces (Special Powers) Act · TADA = Terrorist and Disruptive Activities (Prevention) Act · POTA = Prevention of Terrorism Act · CII = Critical Information Infrastructure.

CERT-In (Indian Computer Emergency Response Team)

National nodal for cyber-*incident* response under MeitY — IT Act **s.70B**. Not a police station.

- Born **2004** (executive). Made the **national nodal** agency by **IT Act s.70B** (2008 amendment)
- Ministry **MeitY** — not MHA, not MoD
- Job: malware, data breach, phishing infrastructure, vulnerability notes, coordination with ISPs and companies
- Does **not** register an FIR and does **not** try a UAPA accused
- **2022 directions:** specified incidents to be reported in **6 hours**. Logs kept **5 years**. Clocks on **NTP**. VPN / cloud / virtual-asset KYC as directed. Challenged in court — for Prelims still treat the directions as **issued**, not "struck down"
- **Cyber Swachhta Kendra** — CERT-In's botnet-cleaning desk for citizens and ISPs — still MeitY, still not a CAPF

> **Logic:** CERT-In = **MeitY / s.70B**, incident response. I4C = **MHA**, cyber-*crime*.

NCIIPC

National nodal for Critical Information Infrastructure under **IT Act s.70A** — parent **NTRO**, not CERT-In.

- Parent: **NTRO** (National Technical Research Organisation, **2004**, post-Kargil technical intel). NSA / Cabinet Secretariat line — **not** MeitY, **not** CERT-In
- CII means: computer resource whose incapacity would hit **national security / economy / public health / safety**. Sectors typically listed: **power, banking, telecom, transport, government, strategic**
- Does **not** run cybercrime.gov.in and does **not** replace State police

> **Logic:** NCIIPC = **s.70A**, **NTRO**, CII only. CERT-In = **s.70B**, all-India CER.

I4C (Indian Cyber Crime Coordination Centre)

MHA cyber-*crime* coordination body — not CERT-In's incident desk.

- Approved **2018**, opened out **2020**
- Job: coordinate cyber-crime (fraud, CSAM, social-media offences) across States
- Portal: **cybercrime.gov.in** — National Cybercrime Reporting Portal. Women / children complaints taken **24×7**
- Verticals: Threat Analytics Unit · Reporting Portal · Joint Cyber Crime Investigation platform · **National Cybercrime Training Centre** · Ecosystem / Research units
- **NCTC name-collision:** I4C's **training** centre ≠ the **National Counter Terrorism Centre** (proposed under IB, **never established**)

> **Logic:** I4C's National Cybercrime Training Centre ≠ the never-born terror NCTC.

Other cyber desks

- **NCSC** (राष्ट्रीय अनुसूचित जाति आयोग) — National Cyber Security Coordinator — **NSCS / NSA** secretariat (~**2015**). Policy glue, not CERT-In DG
- **Defence Cyber Agency** — **2019**, **tri-service**, **MoD**. War-fighting cyber, not I4C fraud
- **CCA** — Controller of Certifying Authorities — IT Act body that licences **digital-signature** Certifying Authorities. Not incident response
- **NTRO** — 2004 technical intel; **parents NCIIPC**. Executive. Not a CAPF

Policy / treaty / section

- National Cyber Security Policy **2013**, MeitY. A **2023 draft** successor was floated — **not** a notified replacement to freeze

- **Budapest Convention** (2001) — Europe's cybercrime treaty. India is **not** a party (data-access / sovereignty). Don't write "India signed in 2013"
- **DPDP Act 2023** — personal-**data** statute (MeitY). ≠ CERT-In, ≠ I4C, ≠ UAPA
- **s.66A** — struck **2015** (*Shreya Singhal*)
- **s.66F** — **cyber-terrorism** — life. Can sit on NIA's schedule as notified. Still the **IT Act**, not UAPA
- **s.69 / 69A** — intercept / **block**. *Shreya Singhal* **upheld 69A**, struck only 66A
- **s.70 / 70A / 70B** — protected system · **NCIIPC** · **CERT-In**

UAPA, 1967

Living criminal statute against secession and terror — Unlawful Activities (Prevention) Act. The accused faces a **trial**. That is why it is **not** the National Security Act **1980** (preventive *detention without trial* — Art. 22 PD).

- **1967** — ban **unlawful associations** that question sovereignty / territorial integrity
- **2004** — **POTA repealed**. Terror-organisation chapters were **written into UAPA** so India was not left without a terror code
- **2008** — after **26/11**: wider terrorist-act definition; longer police-custody / charge-sheet windows
- **2013** — **economic security** + terror-finance (FATF pressure)
- **2019** — Centre may notify **individuals** as terrorists (**Fourth Schedule**). Earlier only **organisations** (First Schedule). NIA officers get wider **attach / seize** powers as provided
- Who notifies: **Central Government (MHA)** — organisations and, after 2019, individuals
- Unlawful-association check: a **Tribunal** headed by a sitting **High Court judge** (not CERT-In, not NITI (नीति))
- Who investigates: **State police** *and* **NIA** when the offence is on NIA's schedule. NIA still needs **no State consent**
- **s.43D(5) bail:** court **shall not** grant bail if the accusation is *prima facie* true. Reverse of ordinary CrPC "bail is the rule"
- Custody clock: police custody can run to **30 days**. Charge-sheet window can be stretched toward **180 days** as the Act provides (ordinary IPC is 60/90)
- *Watali* (2019): SC read 43D(5) **strictly**. Later benches have given fact-specific relief — Prelims still: **bail is exceptional**
- ≠ **NSA** (PD + advisory board) · **Official Secrets 1923** · **AFSPA** (disturbed-area *powers*, no criminal code of its own)

Dead neighbours — one line each

Law	Life	What to mark
TADA	**1985 → lapsed 1995**	First modern terror code. **Not in force**
POTA	**2002 → repealed 2004**	Passed after a **joint sitting** (संयुक्त बैठक) of Parliament (only the third joint sitting). Contents **migrated into UAPA**

Law	Life	What to mark
UAPA	**1967 → still in force**	The survivor. 2004/08/13/19 are *amendments*, not new Acts

> **Logic:** UAPA = **criminal trial**. NSA = **preventive detention**. 2019 can tag **individuals**, not only organisations.

AFSPA

Armed Forces (Special Powers) Act — extra powers for armed forces **only** where the area has been notified as **disturbed**. Not a pan-India police Act and not UAPA (UAPA is a *trial* statute).

- **AFSPA 1958** — North-East, as notified
- **AFSPA (J&K) 1990** — **separate Act** for Jammu & Kashmir. Do **not** say "1958 was extended to J&K"
- Punjab & Chandigarh Act **1983** — **repealed 1997**. Punjab is **not** a live AFSPA theatre
- **s.3** — **Governor** of the State **or** the **Central Government** declares the area **disturbed**. No gazette notification ⇒ the rest of the Act does **not** apply
- **s.4** — after due **warning**: fire even unto death at an assembly of **five or more** / a person with weapons; destroy arms dumps; **arrest without warrant**; enter and search
- **s.6** — **no** prosecution, suit or legal proceeding against the force **without the previous sanction of the Central Government**. Not the State government, not the DM
- Who uses it: **Army, Assam Rifles**, and other armed forces as notified — not the ordinary thana as the Act's subject
- *Naga (नागा) People's Movement for Human Rights* (**1997**) — SC **upheld** AFSPA but listed do's: minimal force, hand over arrested persons to police, no torture. Not a blank cheque
- *EEVEFA Manipur* (**2016**) — every alleged extra-judicial killing must be **inquired**. AFSPA ≠ licence for fake encounters. The Act was **not** struck down
- **B.P. Jeevan Reddy Committee (2005)** — recommended **repeal** and a more humane substitute. The report was **not** enacted — don't write "AFSPA stands repealed by Reddy"
- Irom Sharmila — Manipur hunger strike **2000–2016** — colour / CA, not a section

Map — notifications move; freeze the *direction*

- Lifted: **Tripura, May 2015** · **Meghalaya** (मेघालय) (phased, fully out) · large parts of **Assam from 2022**
- Still notified (whole or pockets): **Nagaland, Manipur, parts of Arunachal Pradesh** · **J&K** under the **1990** Act
- Never the whole Republic. AFSPA is **area-specific**

> **Logic:** AFSPA only in a notified **disturbed area**. J&K = **1990** Act, not 1958. s.6 sanction = **Centre**, not State. Jeevan Reddy repeal was **not enacted**.

Mains link (one frame)

Police stays with the **State**; the Union still owes **Art. 355** and walks in with **CAPFs, NIA, NSG**. Cyber splits **MeitY (CERT-In)** from **MHA (I4C)**. Terror trial = **UAPA** (2019 can tag a *person*); Army in a **disturbed** pocket = **AFSPA** (s.6 Centre sanction) — neither is **NSA** detention. Close with: **IB ≠ RAW**; **SPG 1988 ≠ NSC's SPG**; **Kanker not Gadchiroli**.